

Ankur Verma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 February 2023 · WRIT - C No. 5804 of 2023 · **Disposed; apply under clause 5.6(b); adjust if meter fast**

HEADNOTE

A writ to quash a paid bill said to rest on a defective meter was disposed of with liberty to apply under clause 5.6(b) of the U.P. Electricity Supply Code, 2005, in Annexure-5.1 with the testing fee. The licensee must then follow the Code procedure. If the meter is found running fast, the amount is to be adjusted in future bills.

FACTUAL SUMMARY

Ankur Verma told the licensee on 1 May 2022 that the meter at his premises was defective and asked that earlier bills based on its readings be corrected. A bill dated 19 November 2022 was still raised. He paid that bill in full, then petitioned the High Court to quash it, to adjust any excess, and to stop billing on the defective reading. The only controversy left was testing of the meter and correction of the bills already issued.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6(b)

Meter testing on a consumer application and adjustment if the meter is fast

HOLDING

The petition was disposed of with liberty to the consumer to apply in Annexure-5.1 of the U.P. Electricity Supply Code, 2005, together with the testing fee under clause 5.6(b). On that application the licensee must proceed in accordance with the procedure prescribed in the Code. If the meter is ultimately found to have been running fast, the licensee must adjust the amount in future bills. ¶ 7-8

PRINCIPLE TAGS

UP-2005::5.6(b) The Court did not quash the paid bill. It left the consumer free to apply in Annexure-5.1 with the testing fee under clause 5.6(b), required the licensee to follow the Supply Code procedure, and directed adjustment in future bills only if the meter is found running fast. ¶ 5-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE METER WAS DEFECTIVE OR RUNNING FAST, AND WHETHER THE BILL DATED 19.11.2022 WAS LIABLE TO BE QUASHED OR ANY EXCESS RETURNED

Left to the clause 5.6(b) test. Adjustment in future bills arises only if the meter is found running fast. ¶ 4, 7